Second Notice: YWCA Missoula's Role in Chard-Coordinated Harassment, Civil Rights Violations, and Emerging RICO / Criminal Exposure

From MISJustice Alliance <contact@misjusticealliance.org>

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To the YWCA of Missoula Executive Leadership and Board,

This follow-up incorporates additional evidence about how YWCA staff, clients, and law-enforcement partners were drawn into, and helped legitimize, a coordinated harassment and civil-rights campaign against Elvis R. Nuno. Your continued failure to respond to Mr. Nuno's complaint, to the detailed character-witness email from [name redacted], and to prior MISJustice Alliance outreach now forms part of the record of institutional ratification and potential RICO exposure, not neutrality, and significantly increases both civil and potential criminal exposure for involved individuals.

These communications are being made publicly available at https://misjusticealliance.org for transparency and public accountability, and parallel notices have been sent to prosecutors, chiefs of police, and mayors in both Missoula and Edmonds, Washington.

E'Lise Chard's Use of YWCA Authority and Network

The existing record already shows that E'Lise Chard used her position at YWCA Missoula to carry over and amplify false narratives originating with her estranged sister, Danielle Chard, in Washington. Those Washington narratives—SWAT hoax, fabricated protection-order violations, and discredited claims of dangerousness—were then:

Presented in Missoula as if they reflected credible, vetted victim-safety concerns.

Funneled into Missoula Police Department and prosecutorial decision-making through YWCA channels and partnerships.

E'Lise did not act alone. She leveraged:

Her supervisory authority over YWCA employee Rebecca Pettit, drawing Pettit into the same false narrative and using Pettit's role to further legitimize claims about Mr. Nuno's supposed dangerousness.

Her personal relationship with MPD Officer Ethan Smith, the YWCA liaison officer, who then engaged in repeated arrests without probable cause, off-record coordination, and harassment of Mr. Nuno and his family—conduct so

improper that his commanding officer ultimately removed him from the case for “obvious appearance of impropriety” and his close relationship with E’Lise.

This is not ordinary staff misconduct; it is a senior employee using organizational authority and law-enforcement access to build and sustain a false criminal narrative against a private citizen.

Recruitment of YWCA Client Tyleen Root for Targeted Harassment

The pattern extended into the client base:

- E’Lise used her YWCA position to recruit **YWCA client Tyleen Root** into the campaign against Mr. Nuno.
- Root, who had never met Mr. Nuno and knew of him only through E’Lise, began privately harassing him and then publicly attacking his business page, falsely claiming he stalked her.
- When those public comments were removed, Root escalated by privately messaging people who interacted with the business page, repeating the stalking allegation and attempting to sabotage his reputation and livelihood.

Mr. Nuno never responded to Root, has never met her, and only learned of this secondary wave of defamation when a customer contacted him with screenshots asking why they were being targeted. The total number of people Root messaged remains unknown, significantly magnifying potential reputational and economic harm and implicating state criminal statutes relating to stalking, criminal defamation, and use of electronic communications to harass.

Despite multiple reports to Missoula PD, including offers to provide documentary evidence, officers refused to act and, on at least one occasion, physically intimidated Mr. Nuno when he attempted to present the evidence in person. This refusal, combined with the YWCA-facilitated origin of Root’s conduct and Ethan Smith’s documented impropriety, creates a textbook joint-action and conspiracy fact pattern with both civil-rights and potential criminal-conspiracy implications.

Missoula PD’s Non-Response and Intimidation
When Mr. Nuno sought help:

He repeatedly reported Root’s online harassment and sabotage of his business to Missoula PD, providing evidence of the messages and explaining the YWCA-linked origin of her conduct.

Officers **refused to take any meaningful action**, and on at least one occasion **physically intimidated him** when he attempted to bring in documentation of the harassment and business interference.

That sequence—YWCA staff recruiting a client to attack a specific individual, coordinated with a YWCA liaison officer whose impropriety later led to his removal, and a police department that then refuses to act on clear evidence of harassment—creates a textbook fact pattern of joint action and conspiracy between private actors and state officials.

Ignored Warnings and Collateral Harm to Vulnerable Women

Alongside these events:

- Mr. Nuno filed a formal complaint with YWCA Missoula detailing how E'Lise and YWCA-linked actors were weaponizing the organization's name, authority, and partnerships to pursue a personal and family vendetta.
- Mr. Nuno's parents were eventually forced to file a formal complaint regarding Ethan Smith's conduct, demanding that he cease and desist with all attempts to force communication via personal visits to their residences and repeated phone calls.
- On August 14, 2018, [name redacted], a close personal friend of Mr. Nuno, emailed ywca@ywcaofmissoula.org "regarding conduct of employee E'Lise Chard." She explained that:
  - She met Mr. Nuno when she was pregnant, homeless, and living on the streets, and he took her into his home at no cost, simply to ensure she had a safe, stable place to stay.
  - She saw him provide the same support to many other women in crisis.
  - He was consistently kind, generous, patient, and never abusive, while E'Lise was causing him and his family harassment "for no reason at all" and she urged YWCA to "see what is really going on."

[Name redacted]'s email is a direct character-witness account that:

- Contradicts the Chard narrative portraying Mr. Nuno as dangerous to women or the community.
- Documents him doing precisely what YWCA claims as its core mission: providing safe, no-cost shelter and support to homeless, pregnant, and abused women when others—including their own families—would not.
- YWCA had direct, written notice that an employee was using the organization's authority to harm a man who was, in parallel, doing the work your institution is supposed to be doing.

By ignoring both Mr. Nuno's complaint and [name redacted]'s warning, while continuing to allow E'Lise (and through her, Pettit, Root, and Ethan Smith) to act, the YWCA not only harmed Mr. Nuno but also:

- Destroyed the informal support network he was providing to vulnerable women.
- Left many of those women to fall back into homelessness or abusive relationships once he was driven out of the community and lost his long-standing, successful Seattle-area career.

YWCA Governance, Detective Connie Brueckner, and Brady / Conflict-of-Interest Violations

After Officer Ethan Smith was removed from Mr. Nuno's case for obvious impropriety and his personal relationship with E'Lise Chard, control of the investigation did not move to an independent, conflict-free officer—it was transferred to Detective Connie Brueckner, who at the same time served on the YWCA of Missoula Board of Directors. This dual role created an extraordinary conflict of interest: the very person investigating Mr. Nuno's complaints about YWCA staff misconduct was also a governing fiduciary of the organization whose employees were implicated.

Detective Brueckner's decision to accept and retain investigative control under these circumstances, and the YWCA's decision to allow a sitting MPD detective and board member to handle a case involving complaints against YWCA employees, raise serious questions about:

Breach of fiduciary duties owed to YWCA clients and the community (loyalty, care, and obedience to mission).

Violation of law-enforcement conflict-of-interest norms requiring recusal where personal, institutional, or financial interests materially overlap the subject of an investigation.

These governance and investigative conflicts were compounded by Brady-type violations at the prosecutorial level:

Mr. Nuno and his defense counsel were never affirmatively advised that the lead detective on his case, presented to the court as a neutral law-enforcement investigator, simultaneously sat on the YWCA board overseeing the very employees (E'Lise Chard, Rebecca Pettit) whose allegations and internal narratives drove the case.

The prosecution continued to rely on materials and narratives generated by Ethan Smith—even after his removal and after a formal complaint from Mr. Nuno's parents—without disclosing the full conflict chain (Smith's relationship to E'Lise, his removal, Brueckner's board role, and YWCA's institutional stake in the outcome).

This undisclosed dual-role and continued use of tainted investigative materials deprived Mr. Nuno of the opportunity to impeach key state witnesses, challenge the integrity of the investigation, or seek recusal and suppression on conflict-of-interest grounds—exactly the sort of impeachment and exculpatory information the Supreme Court's Brady line of cases requires the State to disclose. The failure to disclose Detective Brueckner's YWCA board position, her assumption of control after Smith's removal, and the continued reliance on Smith-generated materials despite a a formal complaint are therefore not just ethical failures; they are powerful evidence of systemic due-process violations and support for both civil-rights claims and potential criminal obstruction or conspiracy theories under state and federal law.

Public Record, Pattern Evidence, and Civil / Criminal RICO Exposure

These emails, and prior notices, are being published online as part of MISJustice Alliance's transparency and public-accountability efforts, and simultaneous notifications have been or are being made to:

- The Missoula and Edmonds chiefs of police and city prosecutors;
- The Missoula and Edmonds mayors' offices; and
- Other oversight and civil-rights bodies as appropriate.

In parallel, there is a substantial and growing body of public comments from former YWCA clients and former employees, spanning many years, describing:

- Back-channel sharing of sensitive and HIPAA-protected information with abusers or third parties;
- Retaliation against complainants; and
- Systemic favoritism, failures to protect, and selective enforcement.

That sustained, consistent pattern—when placed alongside the Nuno record—is particularly damning. It supports:

- **42 U.S.C. § 1983 and § 1985 claims** based on joint action and conspiracy between YWCA personnel (E'Lise Chard, Rebecca Pettit), YWCA-recruited clients (Root), and law-enforcement partners (Ethan Smith and others) to deprive Mr. Nuno of his rights and destroy his livelihood.
- **State-law defamation, stalking, and business-interference claims** arising from Root's YWCA-enabled smear campaign against Mr. Nuno and his customers.

- **Civil and potential criminal RICO theories** in which YWCA Missoula, through specific employees and board-connected actors, functions as part of an enterprise engaged in a pattern of racketeering activity—false reports, mail/wire fraud, extortionate plea pressure, targeted economic sabotage, misuse of institutional authority, and coordinated interstate information-sharing—spanning multiple states and jurisdictions over well more than a decade, despite a 2013–2016 U.S. Department of Justice investigation that specifically sought to curb these types of institutional abuses in Missoula.

In addition, several of the described acts—knowingly filing false police reports, perjurious statements, coordinated intimidation, and misuse of interstate communications—are independently chargeable under state and federal criminal statutes (e.g., false statements, witness tampering, obstruction of justice, conspiracy, and certain wire-fraud-based offenses) when tied to an ongoing scheme. The more the public record shows that senior staff and leadership had notice and failed to act, the greater the likelihood that state and federal authorities will view both individual and organizational actors as potential criminal defendants, not merely civil litigants.

Given this landscape, continued silence by YWCA Missoula does not reduce risk; it deepens and documents it. It will be cited as evidence that the organization, when presented with detailed, corroborated allegations and third-party character evidence, chose not to investigate or correct course.

Requested Immediate Actions

MISJustice Alliance again urges YWCA Missoula to be proactive rather than complicit and respectfully requests that the organization:

1. **Confirm in writing within 21 days** that YWCA Missoula has received and reviewed:
   - Elvis Nuno's formal complaint regarding E'Lise Chard and YWCA-linked misconduct;
   - [name redacted]'s August 14, 2018 email about E'Lise's conduct; and
   - Public legal analyses documenting the roles of E'Lise Chard, Rebecca Pettit, Ethan Smith, and client Tyleen Root in the harassment, defamation, and economic sabotage of Mr. Nuno.
2. **Disclose what steps, if any, have been taken** to:
   - Investigate E'Lise's use of supervisory authority over Pettit to draw her into a false narrative about Mr. Nuno.
   - Examine and address Ethan Smith's conduct as YWCA liaison and his removal from the case for impropriety tied to his relationship with E'Lise.
   - Investigate Root's recruitment and conduct, including the scope of her outreach to Mr. Nuno's customers and contacts, and whether internal policies were violated.
3. **Identify a designated legal or compliance point of contact** authorized to discuss corrective actions, record-preservation, potential victim restitution, and cooperation with any future state or federal civil or criminal investigations.

MISJustice Alliance strongly encourages YWCA Missoula to address these matters now, on its own initiative. If the organization continues to remain silent in the face of growing documentation of a multi-year pattern of misconduct and public complaints, that silence will be treated as further evidence of deliberate indifference and institutional participation in a coordinated civil-rights and racketeering scheme—one that may expose YWCA Missoula, and specific individuals acting within these organizations, to significant civil liability, substantial punitive exposure, and serious state and federal criminal risk.

Respectfully,

Anonymous Legal Assistance Group
(MISJustice Alliance)

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